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|    |                    | <p>requests for admissions nos. 418-666.</p> <p>Plaintiff sets forth the following in support of his contention that good cause requires this order:</p> <p>This case is based on the sale of certain real property by Defendant Gallo to Plaintiff Adjemian. As is alleged in the complaint, Adjemian purchased the property and, after doing so and taking possession discovered water intrusion below the exterior decks of the home and into the interior living space. Adjemian learned that Gallo had replaced the decks without permits and without the necessary waterproofing. Adjemian contends that these facts should have been disclosed to him but were not. (Decl. of Quinn, ¶ 1). On December 30, 2025, Gallo propounded his third set of requests for admissions by email on Plaintiff. These requests took the total number of requests propounded to 666. (Decl. of Quinn, ¶ 2). Plaintiff has responded to over 400 requests for admissions to date. (Decl. of Quinn, ¶ 4). Counsel then declares that he discovered the requests were duplicative, as follows: "my review of the latest set led me to conclude that they were largely duplicative of what had previously been responded to. However, due to the volume of interrogatories, trying to analyze all 666 over three sets for duplication was nearly impossible and certainly would have been very time consuming. As such, I uploaded all three sets to ChatGPT and had it analyze for duplication. I then spot checked for accuracy. The results are reflected in my letter. I thus pointed out that the requests were duplicative of the 417 previously propounded and responded to. On this basis, 1 requested withdrawal of requests." (Decl. of Quinn, ¶ 4).</p> <p>The court agrees that 666 requests for admissions in this particular matter is grossly excessive. Defendant Gallo failed to timely oppose, and, therefore, failed to contend why this additional set was necessary. But even if the court were to consider his Opposition, Defendant Gallo did not set forth justification as to why these many requests are necessary. Rather, Defendant Gallo discussed the prior discovery disputes relating to earlier sets of discovery and Plaintiff's failure to completely respond. But if this were the case, the proper remedy would be to move to compel further responses to those prior requests (and Defendant has, in fact, done so on multiple occasions).</p> <p>Accordingly, the court GRANTS the motion.</p> <p>Plaintiff shall give notice.</p> |
| 10 | Streling v. Miller | <p>Plaintiff/Cross-Defendant Sheena Streling moves for summary adjudication on the Complaint. Plaintiff/Cross-Defendant Sheen Streling moves for summary judgment on the Cross-Complaint filed by Defendant/Cross-Complainant Daniel Paul Miller or in the alternative, summary adjudication on each crossclaim therein. For the following reasons, the motions are <b>DENIED</b>.</p> <p><u>Improperly Combined Motions</u></p> <p>Plaintiff moves for summary judgment or adjudication in two separate actions. "A complaint and a cross-complaint are, for most purposes, treated as independent actions. [Citation.] 'Procedurally, a cross-</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          |